

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.

furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Defendants' motion appears to invoke section 425.16, subdivision (e)(3).

In assessing whether the first prong has been met, the court analyzes whether defendant's acts underlying plaintiff's cause of action *itself* was an act in furtherance of the right of free speech, not simply whether protected activity took place. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Where, as here, subdivision (e)(3) is invoked, defendant must also demonstrate the alleged statements were made in connection with an issue of public interest.

Here, defendant satisfies his burden as to the first prong because he presents evidence that the alleged statements to third parties were made in a public forum of the Homeowner's Association meeting and in connection with an issue of public interest of elections to the Homeowner's Associations board of directors. (*Cabrera v. Alam* (2011) 197 Cal.App.4th 1077, 1088–92.)

The burden therefore shifts to plaintiffs to establish that each challenged claim based on the protected activity is legally sufficient and factually substantiated. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) However, plaintiffs do not meet their burden as to any of the causes of action.

Accordingly, defendants' motion is granted without leave to amend.

Defendant may file a separately noticed motion for attorney's fees. (Code Civ. Proc., § 425.16, subd. (c)(1).)

11. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/Judgment Creditors' Motion to Reopen Hearing on Application for Order for Sale of Dwelling, and Adjacent Vacant Lot; Or, Alternatively, for Reconsideration

On July 9, 2026, the court denied plaintiffs/judgment creditors' motion for order for sale of dwelling without prejudice because there was insufficient evidence the dwelling at issue was levied on, a levying officer served defendant/judgment debtor with notice of the levy, or plaintiffs/judgment creditors brought the application within 20 days of the notice of levy being served on the judgment debtor.

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Plaintiffs/judgment creditors now move for the court to reopen the hearing or reconsider its ruling.

First, plaintiffs/judgment creditors request the court to re-open the July 9, 2026, hearing to allow further argument pursuant to the mandatory attorney fault provision in Code of Civil Procedure section 473, subdivision (b) for their counsel's failure to attend oral arguments. However, the court already adopted the tentative ruling and thus further argument on the matter would be fruitless.

Second, plaintiffs/judgment creditors move for the court to reconsider its ruling pursuant to Code of Civil Procedure section 1008. However, as plaintiffs/judgment creditors concede, there are no new facts because the alleged facts plaintiffs/judgment creditors want the court to consider were known at the time of the original hearing. Additionally, plaintiffs/judgment creditors do not submit an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008.)

The court is sympathetic to plaintiffs/judgment creditors' counsel's health concerns. However, the motion does not raise a sufficient factual or legal basis for the court to reopen oral arguments or reconsider its ruling.

Accordingly, plaintiffs/judgment creditors motion is denied.

12. S-CV-0058150 IN RE THE MATTER OF TINNEY, MADELYN

Petition for Approval of Minor's Compromise Claim

The petition for approval of minor's compromise claim is denied without prejudice. Petitioner seeks to recoup \$135,670.12 from the settlement due to her loss of income while caring for the minor and selling and purchasing a new home. The court cannot find this is in the best interest of the minor. Additionally, counsel of record did not sign his declaration in support of attorney's fees and costs.

13. T-CV-0002710 ZHANG, AILING v. THE RITZ-CARLTON HOTEL

The is dropped from calendar in light of the full dismissal with prejudice filed with the court on June 8, 2026.